



U.S. Department  
of Transportation

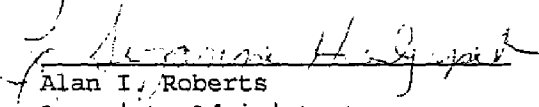
Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 7716 (EXTENSION)  
SECOND REVISION January 6, 1982  
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 7716 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

  
Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

OCT 31 1994  
(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Green Mountain Explosives, Inc.  
Auburn, NH

August 4, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 7716  
(SECOND REVISION)  
(CORRECTED COPY)

1. Kinepak, Incorporated, Lewisville, Texas, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of ammonium nitrate for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transport of ammonium nitrate in inside packagings, each containing three pounds, or less, in DOT Specification outside packagings containing not to exceed 36 pounds net weight and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Kinepak, Incorporated's application dated June 2, 1981, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Ammonium nitrate (no organic coating); oxidizer.
4. PROPER SHIPPING NAME (49 CFR 172.101). Ammonium nitrate (no organic coating).
5. REGULATION AFFECTED. 49 CFR 173.153(b)(1).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.
7. SAFETY CONTROL MEASURES. Packaging prescribed is DOT Specification 12H-65 fiberboard box with a plastic liner bag. Net weight in one box shall not exceed 36 pounds. Inside packaging must be:
  - a. Plastic laminated foil pouches - net weight shall not exceed three pounds, or
  - b. Rigid high density polyethylene bottles - net weight shall not exceed one pound.
8. SPECIAL PROVISIONS.
  - a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
  - b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. August 1, 1983.

Issued at Washington, D.C.:

  
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Alan I. Roberts

Associate Director for  
Hazardous Materials Regulation  
Materials Transportation Bureau

JAN 6 1982

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(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,  
Materials Transportation Bureau, Research and Special Programs Administration,  
U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions  
Branch.

Dist: FHWA, FRA, USCG.